

Court No. - 32

Case :- WRIT - C No. - 253 of 2020

Petitioner :- Dheer Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ashfaq Ahmed Ansari

**Counsel for Respondent :- C.S.C., Chandan
Agarwal**

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, inter alia, for the following reliefs:

"(A) Issue a writ, order or direction in the nature of certiorari quashing the recovery certificate dated 05.12.2019 issued by the respondent no. 3 (As contained in Annexure No. 5 to the writ petition).

(B) Issue a writ, order or direction in the nature of mandamus commanding and directing the respondents not to take any coercive action against the petitioner in pursuance of the recovery certificate dated 05.12.2019 issued by the respondent no. 3.

(C) Issue a writ, order or direction in the nature of mandamus commanding and directing the respondents to decide the application/representation dated 13.12.2019 submitted by the petitioner before the respondent no. 4 in accordance with law after giving an opportunity of hearing to the petitioner. "

Heard learned counsel for the petitioner, Mr. Chandan Agarwal, learned counsel appearing on behalf of the Electricity Department and perused the record.

At the very outset, learned counsel appearing on behalf of the Electricity Department has stated that the petitioner has got an alternative remedy under Clause 6.5 of the U.P. Electricity Supply

code, 2005 to ventilate his grievance.

The learned counsel for the petitioner has not been able to rebut the contention made by the learned counsel for the Electricity Department.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the concerned authority for redressal of his grievance within two weeks from today, his application may be considered and decided by the said authority in accordance with law within a period of four weeks thereafter.

For a period of 6 weeks, the impugned recovery certificate/citation dated 05.12.2019 issued by the respondent no. 3 shall remain in abeyance.

It is made clear that this Court has not expressed any opinion with regard to the merit of the case. The authority concerned shall consider the matter on its own merits.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 7.1.2020

Arun